County of Santa Clara Registrar of Voters

BALLOT MEASURE PRIMARY ARGUMENT FORM

This **Ballot Measure Primary Argument Form** must be submitted **for all ballot measure PRIMARY ARGUMENTS**, with required signatures and author information. The County of Santa Clara Office of the Registrar of Voters allows electronic submission of documents if the scanned copy is clear and readable. You may email your completed form and attach the primary argument in Microsoft Word version to candidateservices@rov.sccgov.org. Any errors submitted on the form or primary argument will be printed in the County Voter Information Guide and/or ballot exactly as submitted. A proof will be sent to the primary filer for confirmation that it matches the argument as submitted—no other corrections will be accepted.

Assembly Bill 1416 was signed by the Governor and is effective as of January 1, 2023. This legislation (Elections Code section 9170) allows primary argument signers to provide a list of individuals, associations, nonprofit organizations, or businesses that are signers or are listed within the text of the argument who support or oppose a ballot measure to be listed under the ballot label. If you wish to submit a list of supporters or opponents, please complete Section 4 on page 5 of this form by providing a list of names of the individuals, associations, nonprofit organizations, and/or businesses to be listed as supporters or opponents. A sample ballot label is provided on page 9, Section 6: Appendix C.

Office Use Only

FILED
AUG 04 2026
REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy

Time/Date Stamp
12:25 pm

Date of Election: November 3, 2026 General Election
Jurisdiction: Regional Transit Measure

Primary Argument due date (E-84): August 4, 2026
Examination Period (E-83 to E-74): ~~August 12, 2026 to August 21, 2026~~ Aug 5 - Aug 15, 2026

Rebuttal Argument due date (E-77): August 11, 2026
Examination Period (E-76 to E-67): August 19, 2026 to August 28, 2026

Measure Letter _____ (if available – letters will be assigned after 5:00 p.m. on E-88)

Type Arg you ing

☐ Primary Argument in Favor / Proponent

☑ Primary Argument Against / Opponent

Declaration Related to Proponent/Opponent Primary Arguments
(Elections Code §§ 9161, 9164, 9167, 9170, 9501, 9501.5, 9504, 9600)

App

☐ **I am an Author of the Proponent Primary Argument** (noted above) for **Measure** _____ being submitted. I support this measure.

☑ **I am an Author of the Opponent Primary Argument** (noted above) for **Measure** _____ being submitted. I oppose this measure.

[redacted]

Argument Against Regional Transit Measure: Demand Fixes Before Funding

- This proposed five-county sales tax hike (Regional Transit Measure or RTM) is a **$14 billion-dollar bailout** for a broken system. Oversight is toothless. Let's demand accountability and structural reform instead of forcing taxpayers to shoulder another heavy burden.

- This measure expects working families to pay for ongoing mismanagement. **Grand juries** in Alameda, Contra Costa and ***Santa Clara*** have **found major flaws in transit financial management and oversight**. Since 2019 **ridership at the major transit agencies has fallen 51%, yet expenses have risen 28%**. Sales taxes grow with inflation, so why has Transit outspent its revenues?

- **Sales taxes are regressive, hitting lower-income residents the hardest.** California's are the nation's highest, exceeding the 9.25% sales-tax limit. ***RTM will push our county sales tax to over 10%.*** While we tighten our belts, agencies want blank checks without addressing their own administrative bloat.

- We need **Fixes Before Funding**, not higher taxes to sustain the inefficient status quo.

- Proponents are **exploiting a loophole to bypass standard taxpayer protections**, attempting to pass this massive tax hike with a mere 50%+1 majority instead of the traditional two-thirds requirement.

- Furthermore, this tax allows continuation of capital-heavy mega-projects. Major transit projects are routinely years late, way over budget, **yet deliver less than 20% of the promised ridership.** Instead of propping up outdated transit modes, agencies must adapt to modern commuting realities **and reallocate existing capital funds to cover shortfalls**.

- Santa Clara residents will pay the largest share of these regressive taxes because we have the largest population. And yet most of the tax dollars will be spent in the other four counties!

- ***That is not fair!!!***

- Don't reward financial negligence.

- ***Don't let RTM treat you like an ATM***.

- Fix Bay Area Rapid Transit by rejecting this tax and demand fiscal discipline.

- Learn more at: **NoNewTransitTax.com**

- **Vote NO on the Measure __.**

FILER / SIGNER SECTION

The Filer of a Primary Argument is the person or entity that is responsible for filing an argument for or against (or in rebuttal to an argument for or against) a measure. The Signer of the Primary Argument is a person whose name is listed and published in the County Voter Information Guide in the election materials after the argument as one of the signatories. Generally, a Filer or Signer may be a district or member(s) of the governing board of that district, an individual voter who is eligible to vote on the measure, a bona fide association of citizens, or a combination of such voters and associations. The Filer signs the argument submission form, attesting under penalty of perjury that they meet the requirements to file an argument. The Filer is typically the main proponent or opponent of the measure but does not have to be. A Filer can also be a Signer of the argument. State law allows for up to five signers for any argument. Therefore, five people may be both Filers and Signers. However, Filers are not required to be Signers.

NOTE: Personal contact information including street address, phone and email will be redacted prior to posting online. Do not include personal contact information when using business information as it is not redacted prior to posting online.

FILL OUT BOTH FILER AND SIGNER SECTIONS IF YOU ARE A FILER AND A SIGNER OF THE PRIMARY ARGUMENT

*** Required information.**

I am the **FILER** of the primary argument: ☑ Yes / ☐ No

I am also a **SIGNER** of the primary argument: ☑ Yes / ☐ No

AS A FILER: My contact information for receiving the opposing author's primary argument is:

*** My Name is:** Mark W.A. Hinkle

INDICATE IF ADDRESS IS: ☑ **Residential or Residential Mailing;** ☐ **Business or Business Mailing**

* Address: [redacted] Morgan Hill CA 95037

* Email Address: [redacted] Phone Number (cell/direct): [redacted]

DO NOT FILL OUT BELOW SIGNER SECTION IF YOU ARE A FILER ONLY OF THE PRIMARY ARGUMENT

AS A SIGNER: I am a: ☐ Registered Voter in the District ☐ Governing Board Member ☑ * Principal Officer of an Organization

*** I have attached one of the following items listed on Page 2 to this form.**

*** My GENDER is:**

☑ Masculine ☐ Feminine ☐ Androgynous or Non-binary ☐ Other: _____

*** My SIGNING ORDER** on the Argument text to be published is: ☑ **1** / ☐ **2** / ☐ **3** / ☐ **4** / ☐ **5** *(please check one)*

*** My name as a SIGNER** (signature to be printed with the primary argument) is: Mark W.A. Hinkle
(do not include degrees or titles; print or type signature in upper- and lower-case font)

*** TITLE OF SIGNER** (to be printed with the primary argument) is: President: Silicon Valley Taxpayers Association
(limited to one title only; do not include descriptors; print or type title in upper- and lower-case font)

SIGNATURE ➡	Under penalty of perjury, I attest the above information meets the required criteria for an individual or for an org[redacted]rposes of submitting an argument:
	[redacted]
	RO[redacted]**NATURES** (signatures will be redacted prior to posting online)